

NEXOVA TECHNOLOGIES PVT. LTD.

MUTUAL NON-DISCLOSURE AGREEMENT

Governed by the Contract Act 1872 and Companies Act 2017 (Pakistan)

Effective Date	[DD MONTH YYYY]
Party A (Nexova)	Nexova Technologies Pvt. Ltd., Islamabad, Pakistan
Party B (Counterparty)	[COUNTERPARTY NAME], [ADDRESS]
Agreement Term	2 years from Effective Date; confidentiality obligations survive 3 years post-termination

ARTICLE I — PARTIES

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of the Effective Date set out above by and between:

Party A: Nexova Technologies Pvt. Ltd.

A private limited company incorporated under the Companies Act 2017 of Pakistan, having its registered office at Islamabad, Pakistan, with additional offices in Dubai, UAE and London, UK (hereinafter referred to as "Nexova" or, as context requires, "Disclosing Party" or "Receiving Party");

Party B: [COUNTERPARTY NAME] _____,

A [company/individual] having its principal place of business at _____, [City], [Country] (hereinafter referred to as "Counterparty" or, as context requires, "Disclosing Party" or "Receiving Party").

Nexova and Counterparty are each referred to herein individually as a "Party" and collectively as the "Parties."

ARTICLE II — RECITALS

WHEREAS, the Parties desire to explore a potential business relationship, including but not limited to commercial partnership, vendor engagement, client onboarding, or technology integration (the "Purpose");

WHEREAS, in connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information;

WHEREAS, the Parties wish to protect such information from unauthorised disclosure and use;

NOW, THEREFORE, in consideration of the mutual covenants and undertakings set out herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree as follows:

ARTICLE III — DEFINITION OF CONFIDENTIAL INFORMATION

3.1 "Confidential Information" means any and all non-public information, in whatever form or medium, disclosed by one Party ("Disclosing Party") to the other Party ("Receiving Party") in connection with the Purpose, including without limitation:

technical data, trade secrets, know-how, research, product plans, software (including source code and object code), algorithms, and engineering designs;
business plans, strategies, forecasts, financial statements, pricing structures, revenue projections, and commercial terms;
customer lists, client data, employee information, and personnel records;
marketing materials, competitive analyses, and partnership arrangements; and
any other information designated as "Confidential" at the time of disclosure or that a reasonable person would understand to be confidential given its nature or the circumstances of disclosure.

3.2 Confidential Information does NOT include information that:

- (a) is or becomes publicly available through no act or omission of the Receiving Party;
- (b) was already in the Receiving Party's lawful possession prior to disclosure, as evidenced by written records predating the disclosure;
- (c) is independently developed by the Receiving Party without reference to or use of the Confidential Information; or
- (d) is lawfully received from a third party who is not bound by any confidentiality obligation with respect to such information.

ARTICLE IV — OBLIGATIONS OF THE RECEIVING PARTY

4.1 Standard of Care. The Receiving Party shall protect the Disclosing Party's Confidential Information using at least the same degree of care it uses to protect its own confidential information of similar sensitivity, but in no event less than reasonable care.

4.2 Permitted Use. The Receiving Party shall use Confidential Information solely for the Purpose and shall not use it for any commercial advantage or other purpose without the prior written consent of the Disclosing Party.

4.3 Permitted Disclosures. The Receiving Party may disclose Confidential Information solely to:

- (a) its employees, directors, and officers who have a genuine need to know such information for the Purpose ("Need-to-Know Personnel"), provided that such personnel are bound by confidentiality obligations no less protective than those set out herein; and
- (b) its legal advisors, financial advisors, or auditors who are bound by professional duties of confidentiality.

4.4 Required Disclosure. If the Receiving Party is required by applicable law, court order, or regulatory authority to disclose any Confidential Information, it shall:

- (a) provide the Disclosing Party with prompt written notice (to the extent legally permissible) prior to disclosure;
- (b) cooperate reasonably with the Disclosing Party in seeking a protective order or other appropriate relief; and
- (c) disclose only the minimum amount of information required to comply with the legal obligation.

ARTICLE V — TERM

5.1 This Agreement shall commence on the Effective Date and shall remain in full force and effect for a period of two (2) years, unless earlier terminated by either Party upon thirty (30) calendar days' written notice to the other Party.

5.2 Notwithstanding termination or expiry of this Agreement, the Receiving Party's confidentiality obligations with respect to all Confidential Information disclosed during the term of this Agreement shall survive and continue for a further period of three (3) years following the date of termination or expiry.

ARTICLE VI — RETURN OR DESTRUCTION OF CONFIDENTIAL INFORMATION

6.1 Upon the written request of the Disclosing Party, or upon termination or expiry of this Agreement, the Receiving Party shall, within ten (10) business days:

- (a) return to the Disclosing Party all tangible materials containing Confidential Information; or
- (b) permanently destroy all such materials and all copies, extracts, and derivatives thereof, whether in electronic or physical form.

6.2 Upon completion of return or destruction, the Receiving Party shall provide the Disclosing Party with a written certification, signed by an authorised officer, confirming that all Confidential Information has been returned or destroyed in accordance with this Article. The Receiving Party may retain one archival copy solely as required by applicable law or regulation, subject to continued compliance with this Agreement.

ARTICLE VII — NO LICENSE GRANTED

7.1 Nothing in this Agreement shall be construed as granting, by implication, estoppel, or otherwise, any license or right to the Receiving Party under any patent, copyright, trademark, trade secret, or other intellectual property right of the Disclosing Party.

7.2 All Confidential Information remains the exclusive property of the Disclosing Party. The Receiving Party acquires no rights in or to any Confidential Information except the limited right to use it for the Purpose as expressly set out herein.

ARTICLE VIII — REMEDIES

8.1 Acknowledgment of Irreparable Harm. Each Party acknowledges that any breach or threatened breach of this Agreement may cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy.

8.2 Injunctive Relief. Accordingly, in the event of any actual or threatened breach, the Disclosing Party shall be entitled to seek injunctive or other equitable relief from a court of competent jurisdiction without the requirement of posting any bond or other security and without the necessity of proving actual damages.

8.3 Indemnification. The Receiving Party shall indemnify, defend, and hold harmless the Disclosing Party and its officers, directors, employees, and agents from and against any and all losses, damages, liabilities, costs, and expenses (including reasonable legal fees) arising out of or relating to any breach of this Agreement by the Receiving Party or its Need-to-Know Personnel.

8.4 Cumulative Remedies. The rights and remedies set out in this Agreement are cumulative and not exclusive of any other rights or remedies available at law or in equity.

ARTICLE IX — GENERAL PROVISIONS

9.1 Governing Law and Jurisdiction. This Agreement shall be governed by and construed in accordance with the laws of the Islamic Republic of Pakistan, including the Contract Act 1872 and the Companies Act 2017. The Parties irrevocably submit to the exclusive jurisdiction of the courts of Islamabad, Pakistan for the resolution of any dispute arising out of or in connection with this Agreement.

9.2 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, warranties, and understandings of the Parties, whether oral or written.

9.3 No Waiver. The failure of either Party to enforce any provision of this Agreement shall not constitute a waiver of that Party's right to enforce such provision or any other provision in the future.

9.4 Severability. If any provision of this Agreement is held invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall continue in full force and effect, and the invalid provision shall be modified to the minimum extent necessary to make it valid and enforceable.

9.5 Amendments. This Agreement may not be amended, modified, or supplemented except by a written instrument duly signed by an authorised representative of each Party.

9.6 Counterparts and Electronic Signatures. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures, including those transmitted by PDF or digital signature platforms (including DocuSign), shall be deemed valid and binding with the same force and effect as original handwritten signatures.

9.7 Notices. All notices under this Agreement shall be in writing and delivered to:

For Nexova: Nexova Technologies Pvt. Ltd., Islamabad, Pakistan | Email: legal@nexova.io | Attention: Legal Counsel

For Counterparty: [COUNTERPARTY NAME], [ADDRESS] | Email: [] | Attention: []

9.8 Relationship of Parties. Nothing in this Agreement shall create or be deemed to create a partnership, joint venture, agency, or employment relationship between the Parties.

IN WITNESS WHEREOF

the Parties have executed this Mutual Non-Disclosure Agreement as of the Effective Date first written above.

FOR AND ON BEHALF OF NEXOVA TECHNOLOGIES PVT. LTD.

Name:

Title:

Date:

Authorised Signature

FOR AND ON BEHALF OF [COUNTERPARTY NAME]

Name:

Title:

Date:

Company:

Authorised Signature

Nexova Technologies Pvt. Ltd. · Islamabad, Pakistan · Offices: Islamabad · Dubai · London
Questions: legal@nexova.io | General HR: hr@nexovatech.com | Ethics: ethics@nexovatech.com